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Clearview AI Inc.
99 Wall Street
#5730, New York, NY, 10005
United States

Date

May 16, 2024

Our reference

Contact person

Subject

Decision to impose fines and penalties under coercive measures

Dear members of the board,

The Authority for Personal Data (hereinafter: AP) has decided to impose a total fine of €30,500,000 on Clearview AI Inc. (hereinafter: Clearview). Clearview has committed violations of the General Data Protection Regulation by breaching the following standards.

Firstly, the AP is of the opinion that Clearview processes personal data of individuals located in the Netherlands for its service 'Clearview for law enforcement and public defenders' without a lawful basis. This constitutes a violation of Article 5, paragraph 1, introductory part and under a, read in conjunction with Article 6, paragraph 1, of the General Data Protection Regulation (hereinafter: GDPR).

Secondly, Clearview violates Article 9, paragraph 1, of the GDPR for that service by processing a special category of personal data (biometric data) of individuals located in the Netherlands.

Thirdly, the AP is of the opinion that Clearview inadequately informs individuals. As a result, Clearview acts in violation of Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR, and in violation of Article 5, paragraph 1, introductory part and under a, of the GDPR.

Fourthly, Clearview has violated Article 12, paragraph 3, read in conjunction with Article 15 of the GDPR by failing to respond to two access requests from individuals. Because Clearview does not facilitate individuals located in the Netherlands in exercising their right of access, it also violates Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR.

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The fact that Clearview has not designated a representative in the European Union as intended in Article 4, introductory part and under 17, of the GDPR, although it is required to do so under Article 27, paragraph 1, of the GDPR, also constitutes a violation of the GDPR. For this violation, the AP refrains from imposing a fine on the grounds that Clearview has already been fined for this violation by the Italian and Greek data protection authorities.

The AP has also decided to impose four penalties under coercive measures on Clearview, which relate to the cessation of the ongoing violations.

The AP believes that imposing administrative fines and penalties under coercive measures on Clearview is not only appropriate but also necessary, as there are serious violations involved. Clearview has violated the rights and freedoms of citizens by unlawfully processing their personal data (including biometric data), by inadequately informing citizens about that processing, by failing to

respond to access requests from citizens, and by not designating a representative in the European Union.

This decision explains the administrative fines and the penalties under coercive measures. To this end, it successively addresses (1) the background and process, (2) the established facts, (3) the violations, (4) the amount of the fines, and (5) the penalties under coercive measures. Finally (under 6), the decision follows, and you will read what you can do if you disagree with the decision.

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1. Background and procedural history

1

On January 3, 2023, the AP received a complaint from an individual. This individual complained that Clearview AI Inc. did not comply with a request for access submitted by him. On January 24, 2023, the AP received a similar complaint from another individual. Finally, on April 11, 2023, the AP received a tip from a third individual. This individual stated in the tip that the response to an access request by Clearview indicates that multiple photos of (the face of) the individual are included in Clearview's database.

2

In a letter dated March 6, 2023, the AP informed Clearview that it had initiated an ex officio investigation into the processing of personal data by Clearview for the purpose of the facial recognition tool offered by Clearview.

3

This investigation led to the Directorate of Policy, International, Strategy, and Communication of the AP preparing a report of findings on May 1, 2023 (hereinafter: investigation report). This investigation report was transferred to the enforcement department of the Directorate of Legal Affairs and Legislative Advising of the AP on June 1, 2023.

4

In a letter dated June 20, 2023, the AP sent Clearview a notice of intent to enforce, along with the underlying investigation report and related documents. Clearview was given the opportunity to express its views on the investigation report and the underlying documents. In an email dated June 21, 2023, the AP sent a copy of the letter dated June 20, 2023, to Clearview. Clearview did not take advantage of the opportunity provided by the AP to express its views on the notice of intent to enforce.

2. Facts

2.1 The business and processing activities of Clearview

5

Clearview is based in New York, United States.¹ Clearview has no establishment in Europe. The company also has no representative in the European Union (hereinafter also: the Union).

6

Clearview offers services that utilize facial recognition technology. This means an algorithm that can analyze faces in an image with such accuracy that it can subsequently recognize the same face (and thus the same person) in other images.

7

To recognize a face across multiple images, Clearview uses an advanced algorithm. The core of this algorithm is a 'model' that has been built through

1 Clearview AI Inc., 99 Wall Street #5730, New York, N.Y. 10005, USA.

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so-called machine learning. The model converts a depicted face into a unique code. This is also referred to as 'embedding' or 'vector'. The vector is constructed in such a way that when multiple images of the same individual's face are subjected to the algorithm, the corresponding vectors differ little from one another. By comparing the vector of the individual's face with other vectors, it is possible to find other images depicting that individual's face.

8

Clearview has established a database consisting of more than 30 billion photos (hereinafter: the database). The photos in the database are sourced from publicly accessible internet sources, including social media platforms, personal and professional websites, news articles, booking photos, and U.S. public databases containing information about convicted individuals. The photos are collected by so-called 'crawlers'. These are software programs that automatically capture information from the internet. This typically begins based on a list of websites to visit (URLs)², but the crawler can also be configured to automatically follow hyperlinks to other websites. In this way, depending on the settings, a large part of the internet can be captured, even if the original list of URLs to visit is small. This method is also referred to as 'scraping'. In its "Company Overview," Clearview stated the following: "Clearview AI has a proprietary open-web crawling algorithm which has collected data from millions of domain names (...)" This involves a form of 'unfocused scraping'. In unfocused scraping, the information is collected indiscriminately and systematically. This means that the collection occurs at the scraper's own initiative, regardless of whether there is a search request from a Clearview customer.

9

Clearview has not set any limitations in its crawler regarding geographical location or nationality. The scope of the collection is compared by Clearview to the data stored by Google, for which there are also no a priori limitations: "Clearview AI's image repository consists of public data that can be obtained by a typical Google search".³

10

Furthermore, Clearview's crawler has the same access rights as any other visitor to the same webpage. This means that, for example, a social media profile that is only accessible to friends cannot be visited and captured by Clearview. The AP notes that the profile picture and corresponding name of the individual are still often visible from private social media profiles.

11

For every image containing one or more faces that Clearview's crawler encounters, Clearview records the following information:

- URL of the webpage of the original photo;

2 A URL (Uniform Resource Locator) is – in short – the address of a webpage.

3 <https://www.clearview.ai/post/what-clearview-ai-has-implemented-to-ensure-that-facial-recognition-technology-is-used-responsibly>

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- the photo itself;

- any data that describes characteristics of the photo, such as the date and time the photo was taken, if they are part of the photo (hereinafter: metadata);

- vector associated with the face (or faces) in the photo.

When the decision refers to "the photos," it also includes any associated metadata, vector, and the URL of the photo.

12

The machine learning algorithm used by Clearview has been trained and tested with photos that Clearview retrieves from the database mentioned above. The training and testing involve multiple images of faces known to be of the same person (for example, because they appear on the same social media profile). Based on the examples, the model "learns" how to compare faces and thus also how to search.

2.2 The operation of the algorithm and description of the service 'Clearview for law enforcement and public defenders'

13

The service offered by Clearview, 'Clearview for law enforcement and public defenders', which is central to this decision (hereinafter also: the service), consists of making searchable the database mentioned in paragraph 8, which contains more than 30 billion photos. By pre-calculating the vectors for each photo, users are enabled to search "by face" (essentially: by vector) and thus find other images of the same face in the Clearview database.

14

The service 'Clearview for law enforcement and public defenders' is intended for government and investigative agencies. With this service, those agencies can search the aforementioned database (Clearview Platform). The user of this service follows the steps described below.

15

Before the search process can commence, the user must have a digital photo of an individual, also referred to as a 'probe image'. This image can come from a phone, surveillance camera, bodycam, or another source. The user's goal is to find out which other photo in the Clearview database features the individual. If the Clearview database, for example, contains a photo from a blog post or social media profile, this allows the user to identify the individual.

16

The first step involves uploading the probe image to Clearview's servers. Certain case information is also sent along with this.⁴ After uploading, Clearview calculates the vector of the probe image using the trained model.

4 This includes case number and type of crime.

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17

By comparing the vector of the individual's face with all the vectors present in its database, Clearview retrieves, if present in its database, the photos in which the individual is also shown. These images were previously collected by Clearview using the crawler mentioned in paragraphs 8 and onwards.

18

The found photos and associated URLs are then relayed back to the user.

19

By following the links to the URLs where the original photos were found by the crawler, the user is enabled to uncover more personal data about the individual, potentially allowing for identification. When it concerns a profile photo on a social media platform, this identification is often straightforward because it typically involves personalized profiles.

3. Assessment

20

Paragraphs 3.1 and 3.2 address the material and territorial scope of the GDPR. Paragraphs 3.3 to 3.8 sequentially cover the assessment of the data processing responsibility, legality of the processing, processing of special categories of personal data, transparency obligations, rights of data subjects, and representation within the Union.

3.1 Material scope of the GDPR

3.1.1 Legal framework

21

According to Article 2, paragraph 1, of the GDPR, this regulation applies to the wholly or partially automated processing, as well as to the processing of personal data that is included in a file or intended to be included therein.

22

Article 2, paragraph 2, of the GDPR states that the GDPR does not apply to the processing of personal data:

- a. in the context of activities that fall outside the scope of Union law;
- b. by Member States in the performance of activities that fall within the scope of Title V, Chapter 2, TEU;
- c. by a natural person in the course of purely personal or household activities;
- d. by the competent authority for the purpose of preventing, investigating, detecting, and prosecuting criminal offenses or the enforcement of penalties, including the protection against and prevention of threats to public safety.

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23

The exceptions to the applicability of the GDPR mentioned in Article 2, paragraph 2, of the GDPR must be interpreted restrictively according to the Court of Justice of the European Union (hereinafter: CJEU).⁵

24

In this regard, the CJEU has considered that Article 2, paragraph 2, introductory part and under a of the GDPR, read in light of Recital 16 of the GDPR, should be understood as having the sole purpose of excluding the processing of personal data by public authorities in the context of activities aimed at protecting national security or in the context of activities that can be categorized similarly, particularly activities aimed at protecting the essential functions of the state and the fundamental interests of society.⁶

25

According to Article 4, introductory part and under 1, of the GDPR, personal data is defined as any

information relating to an identified or identifiable natural person (the data subject).

26

Article 4, introductory part and under 2, of the GDPR states that the processing of personal data refers to any operation or set of operations performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, updating or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction of data.

27

Article 4, introductory part and under 14, of the GDPR defines "biometric data" as personal data resulting from specific technical processing related to the physical, physiological or behavioral characteristics of a natural person, which allows for the unique identification of that natural person or confirms it, such as facial images or fingerprint data.

28

From Recital 51 of the GDPR, it follows that the processing of photographs should not be systematically regarded as processing of special personal data "since photographs only fall under the definition of biometric data when they are processed using certain technical means that enable the unique identification or authentication of a natural person."

3.1.2 Factual Findings

29

From Clearview's business model, it follows that Clearview collects and stores photos from public sources through scraping in the exercise of its business. This is also supported by the various privacy statements issued by Clearview. These photos may, in addition to the image material, also contain metadata.⁷ As described above in paragraph 8, the Clearview database contains more than 30 billion different photos.

30

Based on the photo in the database, as outlined in paragraph 2.2, a vector is created of the face of the person or persons depicted in the photo. These facial features can be used to later identify individuals and determine which other photos within the Clearview database feature that person.

3.1.3 Legal Assessment

31

In the opinion of the AP, Clearview's processing activities fall within the material scope of the GDPR. The AP substantiates this as follows.

3.1.3.1 (Special) Personal Data

32

Firstly, both the photos and the associated metadata and the source of the photos are personal data as defined in Article 4, introductory part and under 1, of the GDPR. The individuals depicted in the photos collected by Clearview are recognizable. Additionally, the metadata of a photo, when available, can lead to the identification of the data subject. The source of the photo, in the form of a URL, can also include a unique identifier of a data subject, for example in the form of a username or user ID.

33

Furthermore, the vectors created from the collected photos using Clearview's algorithm are biometric data within the meaning of Article 4, introductory part and under 14, of the GDPR and special personal data within the meaning of Article 9, paragraph 1, of the GDPR. The AP substantiates this as follows.

34

Article 4, introductory part and under 14, of the GDPR defines biometric data as personal data resulting from specific technical processing related to the physical, physiological or behavioral characteristics of a natural person, which allows for the unique identification of that natural person or confirms it, such as facial images or fingerprint data.

35

From Article 4, introductory part and under 14, of the GDPR and from Recital 51 of the GDPR, it follows that the mere fact that individuals are recognizable in photographs is insufficient to consider

these photographs as biometric data. This only occurs when they are processed using certain technical means that enable the unique identification or authentication of a natural person. In the opinion of the AP, this condition is also met, and the AP substantiates this as follows.

36

From paragraph 2.2, it follows that Clearview uses an algorithm to convert the collected photos and the uploaded photos into vectors. From paragraph 2.2.2, it follows that Clearview manages a database with

7 See paragraph 11.

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collected photos and the corresponding vectors. With this facial recognition technology, Clearview thus utilizes a technical means.

37

Furthermore, the technical means must have the purpose of enabling unambiguous identification of natural persons. From paragraph 2.2, it follows that it is inherent in the nature of the service that the service is used to find other photos of the same individual in Clearview's database through an uploaded photo of the individual – the probe image. Using the algorithm, the vectors of the probe image are compared with the vectors of the collected photos stored in the database. In this way, the user can determine which photos show the individual and gain access to the URLs and metadata associated with this image. Thus, through the use of the Clearview search function, an individual can be unambiguously identified.

3.1.3.2 Processing of (special) personal data

38

It has been established that Clearview's service consists of (among other things via scraping) collecting, storing, updating, and providing personal data to third parties. The AP concludes that there is processing of personal data within the meaning of Article 4, introductory phrase and under 2, of the GDPR. Thus, the conditions for the application of the GDPR, as laid down in Article 2, paragraph 1 of the GDPR, are met.

3.1.3.3 Exceptions to the material scope

39

The exceptional situations laid down in Article 2, paragraph 2, of the GDPR do not apply. Clearview is a private party and not a member state, government agency, or competent authority. Therefore, the exceptional situations laid down in Article 2, paragraph 2, introductory phrase and under a, b, and d do not apply. Clearview is also not a natural person, so the exceptional situation under c does not apply either.

3.1.3.4 Conclusion on the material scope of the GDPR

40

In light of the above, the AP concludes that Clearview processes (special) personal data for offering its services via the Clearview Platform. Thus, the conditions for the application of the GDPR, as laid down in Article 2, paragraph 1 of the GDPR, are met. The exceptional situations laid down in Article 2, paragraph 2, of the GDPR do not apply. In this regard, the processing of personal data by Clearview falls within the material scope of the GDPR.

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3.2 Territorial scope of the GDPR

3.2.1 Legal framework

41

Article 3 of the GDPR determines the territorial scope of the regulation. From the second paragraph of that provision, it follows that the scope of the GDPR is not limited to the territory of the European Union (hereinafter: the Union). The GDPR may also apply to processing by data controllers located outside the Union. This is primarily the case when the data controller offers goods or services to data subjects located in the Union. Additionally, the GDPR applies to the monitoring of the behavior of data subjects in the Union. Therefore, the GDPR is applicable in any case if:

- a. the data controller is not established in the Union;
- b. personal data is processed of data subjects who are located in the Union;
- c. the processing is related to monitoring the behavior of data subjects, insofar as that behavior takes place in the Union.

42

Recital 24 of the GDPR states regarding the monitoring of behavior referred to in (c) that to determine whether a processing can be considered as monitoring ("tracking of behavior") of data subjects, it must be established whether natural persons are tracked on the internet, and whether processing techniques are used in that context to create a profile of a natural person, particularly to make decisions about them or to analyze or predict their personal preferences, behaviors, and attitudes.

43

In Guidelines 3/2018 on the territorial scope of the GDPR dated November 12, 2019, the European Data Protection Board (hereinafter: EDPB) noted that the use of the word "monitoring" or "tracking" implies that the data controller has a specific purpose for collecting and then reusing the relevant data about a person's behavior in the EU. The EDPB believes that the online collection or analysis of personal data of individuals in the EU does not automatically qualify as "monitoring." The purpose of the data controller with the processing of the data must be considered, and, in particular, any techniques used to analyze behavior or create a profile based on that data. The EDPB takes into account the wording of Recital 24 of the GDPR, which indicates that tracking natural persons on the internet, including the potential subsequent use of profiling techniques, is a crucial element in determining whether the behavior of a data subject is being monitored during processing.

8 Guidelines 3/2018 on the territorial scope of the GDPR dated November 12, 2019, p. 22.

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****3.2.2 Factual Findings****

44

In a letter dated March 17, 2023, Clearview informed the AP that it is established in the United States and has no establishment in the EU. The letterhead states that Clearview's address is 99 Wall Street #5730, New York, N.Y. 10005 (United States). The same address is mentioned on Clearview's website.

45

In its letter, Clearview stated, among other things:

"Clearview AI does not respond to Art. 15 GDPR access requests, because it is not subject to the GDPR as we have mentioned. In the past, Clearview voluntarily provided European residents with information about their appearance or non-appearance in Clearview AI search results upon request. However, we have terminated that practice, both to reduce potential security risks and to better reflect the fact that Clearview AI's activities are not within the territorial scope of the GDPR. As such, Article 15 is not applicable to Clearview AI."

46

In Clearview's privacy statement dated January 29, 2020, published on its website, it is stated that

residents of the European Economic Area (the member states of the Union, Liechtenstein, Norway, and Iceland) or Switzerland who wish to file a complaint or seek a resolution for a dispute with Clearview regarding the processing of their personal data can contact the competent data protection authority of their country free of charge.

47

According to the Central Bureau of Statistics, 97% of the Dutch aged 12 years or older had access to the internet at home in 2020.⁹ Of the respondents, 87.6% indicated that they used the internet almost every day in the past three months. In 2019, 63% of the Dutch aged twelve years or older were active on one or more social networks, such as Facebook, Twitter, Instagram, or Snapchat.¹⁰

****3.2.3 Legal Assessment****

****3.2.3.1 Data Controller is Not Established in the Union****

48

It is established that Clearview is not located in the Union. This follows from the information on Clearview's website, Clearview's letterhead, and Clearview's letter to the AP dated March 17, 2023.

⁹ <https://www.cbs.nl/nl-nl/cijfers/detail/83429NED?dl=2F8AA>

¹⁰ <https://longreads.cbs.nl/nederland-in-cijfers-2020/wie-gebruikt-het-vaakst-sociale-media/#:~:text=Vrijwel%20iedereen%20in%20de%20leeftijdsgroep,laatste%20jaren%20vaker%20sociale%20media.>

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****3.2.3.2 Processing of Personal Data of Data Subjects in the Netherlands****

49

In paragraph 3.1.3.2, it has already been concluded that Clearview processes (special) personal data. The question that must then be answered is whether the processing also includes personal data of Dutch data subjects.

50

In response to the AP's first request for information, Clearview merely stated that it believes the GDPR does not apply to it and therefore did not answer the questions posed by the AP. This also applies to the questions regarding the processing of personal data of Dutch data subjects. Additionally, Clearview indicated that it no longer processes access requests from data subjects in the European Union.

51

However, the AP finds that Clearview also processes data of Dutch data subjects—as well as personal data of other citizens in other member states of the Union. This is evident from the following.

****Response to Access Request from Dutch Data Subject****

52

As mentioned in paragraph 1, the AP received a tip on April 11, 2023, from a Dutch data subject who timely submitted an access request to Clearview. This means that Clearview responded to that request before it decided to no longer process new requests from EU citizens. Based on the probe image provided by the data subject, three images were found that originated from different websites with a .nl domain extension. The found images and the exact URLs where these can be found are included in the response to the access request. This confirms that this Dutch data subject appears in Clearview's database and that Clearview has scraped Dutch websites.

****Absence of a Filter for Dutch Data Subjects****

53

Additionally, the AP takes into account that the database, according to Clearview, contains 30 billion images, and this number has likely grown since then. No measures have been taken to filter and exclude images of Dutch data subjects (or their behavior in the Netherlands) from the database. On

the contrary, it follows from the previous paragraph that Clearview's crawler also scrapes Dutch websites. Furthermore, the AP notes in this context that the internet and social media are widely used in the Netherlands. The AP refers to paragraph 47 for illustration.

54

In light of the above, the AP concludes that Clearview's database also includes personal data of Dutch data subjects.

****Privacy Statement of Clearview dated January 29, 2020****

55

As stated in paragraph 46, the privacy statement on Clearview's website itself indicated from at least January 29, 2020, that data subjects from the European Economic Area could contact the competent authority for complaints.

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regarding Clearview could turn to their national supervisory authority. From this, the AP concludes that Clearview processes personal data of these individuals – including Dutch individuals. After all, if that were not the case, the referral of the complaint to national supervisory authorities would be pointless. In light of this, Clearview's position in its letter of March 17, 2023, that the GDPR would not apply to it, is contrary to the previous findings of the AP.

Decisions by other European supervisory authorities

56

Furthermore, the AP points to the following enforcement decisions and measures based on the GDPR that other European supervisory authorities have taken against Clearview. These decisions confirm that Clearview processes personal data of individuals across Europe.

57

The German supervisory authority in Hamburg (Hamburgische Beauftragte für Datenschutz und Informationsfreiheit) ordered Clearview, by letter dated January 27, 2021, to delete the biometric data of a German citizen under the GDPR. This citizen made a request for access, and the German supervisory authority determined that Clearview's response indicated that the German citizen was indeed present in the database.

58

The Italian supervisory authority (Garante per la protezione dei Dati Personali) established in an enforcement decision based on the GDPR dated February 10, 2022, among other things, that four complainants had made a request for access to Clearview and that three of them received a substantive response from Clearview. Furthermore, the Italian supervisory authority found that these three complainants appeared in the database with three, thirteen, and nine images, respectively.

59

The British supervisory authority (Information Commissioner's Office) determined in an enforcement decision dated May 18, 2022, also based on the GDPR, that Clearview processed personal data of British citizens. The British supervisory authority supported this conclusion, among other things, by noting that British customers had trial periods to test Clearview's service, during which five enforcement agencies conducted a total of 721 searches. Clearview provided search results back to those agencies. Clearview no longer offers the service in Great Britain. The British supervisory authority has, however, found no indications that the number of images of British citizens in the Clearview database has decreased.

60

The French supervisory authority (Commission nationale de l'informatique et des libertés) concluded in an enforcement decision based on the GDPR dated October 17, 2022, that Clearview has processed personal data of French citizens. The French supervisory authority considered in this context that the images processed by Clearview are not limited to the territory of the United States but are indeed

collected from, among other things, globally used social networks.

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61

The Austrian supervisory authority (Datenschutz Behörde) concluded in an enforcement decision based on the GDPR dated May 9, 2023, that Clearview has processed personal data of an Austrian complainant who had made a request for access.

****3.2.3.3 Processing relates to monitoring the behavior of data subjects in the Netherlands****

62

In the Guidelines 3/2018 on the territorial scope of the GDPR by the EDPB, it is stated that for the application of Article 3, paragraph 2, introductory sentence and under b, of the GDPR, it is not necessary for the data controller to intend to monitor the behavior of a data subject in a targeted manner, but it is important whether the data controller has a specific purpose in processing the data about a person's behavior and in creating a profile of that individual. The subsequent use is also relevant.

63

From the description of the processing of personal data by Clearview, it follows that the personal data in Clearview's database is enriched over time with new information. The decision of the Italian supervisory authority also states that changes in the appearance of data subjects do not prevent new data from being linked to old data. By enriching old data with new images, metadata, and associated URLs, an archive of continuously updated information about data subjects is created over time.

64

As explained in Chapter 2, the purpose of Clearview's service is to enable customers to match probe images with images of the same data subject already included in the Clearview database. By being able to search and match images in this way, Clearview's customers are enabled to search the aforementioned archive of information about a data subject and to track the behavior of those appearing in the images over time. This includes, for example, the relationship status of the person, parental status, location or residence, use of social media, habits (for example, whether the individual smokes or drinks), profession or pastime, ability to drive a car, what (paid) activities this person engages in (and whether these are legal).

65

In this way, Clearview's customers learn more about the individuals depicted in the photos, including their identity. However, establishing identity is not the only reason. Given the intended customers of the service (government and law enforcement agencies), it is more than likely that these agencies are interested in individuals who are of interest to law enforcement due to their (suspected) behavior.

66

Considering the intended customers of the service (government and law enforcement agencies), they also use the service to make decisions that may affect the data subjects, to predict or analyze their behavior, to apprehend them, to gather evidence about what they have done, or to prevent illegal activities. Monitoring a person's behavior by a customer of Clearview may include: determining where a person is or was at a specific time, the in

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the ongoing observation of a person through repeated submission of the same probe image of that person, combining the search results with information obtained from other forms of monitoring or surveillance.

67

Considering the sources from which Clearview obtains the images in its database (including social media), the behavior referred to above inevitably also includes the behavior of Dutch subjects in the Union. It is also relevant that these subjects will generally spend the majority of their time in the Netherlands, making it likely that the photos collected by Clearview will predominantly reflect behavior in the Netherlands—this does not exclude the possibility that it also encompasses the behavior of Dutch citizens throughout the Union.

3.2.3.4 Conclusion

68

Since Clearview is not established in the Union, processes personal data of subjects located in the Netherlands, and the processing is related to monitoring the behavior of subjects in the Netherlands, the AP concludes that the processing of personal data by Clearview for its service falls under the territorial scope of the GDPR.

3.3 Data Controller

3.3.1 Legal Framework

69

Article 4, introductory phrase and under 7, of the GDPR defines a data controller as a natural person or legal entity that determines the purposes and means of processing personal data, alone or jointly with others.

3.3.2 Factual Findings

70

Regarding the data processing responsibility, two situations can be distinguished given the services offered by Clearview.

71

Firstly, personal data is processed in the context of establishing, maintaining, and enriching the Clearview database and for training the Clearview facial recognition algorithm. Clearview carries out these processes on its own initiative to offer a service to its (potential) users. The users of Clearview's services are not involved in the (unfocused) scraping of personal data from the internet, the construction and maintenance of the database of collected photos, or the training of the algorithm. These users are generally not in the picture at the time Clearview processes this data. For example, users do not provide instructions or preferences regarding the types of photos to be included in Clearview's database or the sources from which these are collected.

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72

Secondly, personal data is processed in the context of a search request from a Clearview user, where the user wishes to find photos in the Clearview database that depict the same person as in the probe image. When a Clearview user wishes to identify a person in a photo using the Clearview database, the user must upload that photo to Clearview. Based on this photo, Clearview, using its algorithm, checks for a "match" and returns this photo(s) to the user.

3.3.3 Legal Assessment

73

The AP notes that Clearview processes personal data when scraping the internet. Clearview independently determines the purpose, namely offering and developing its services to (potential) customers and creating a database of billions of photos that can be searched based on a customer (user) request.

74

In paragraph 2.2, the factual operation of the Clearview Platform is briefly outlined. It follows, among

other things, that Clearview determines the process regarding the collection of personal data, the construction of the database, its maintenance, and the training of the Clearview facial recognition algorithm. Clearview independently determines which personal data it collects, how it does so, and thus also with which means it processes the personal data. Clearview also determines which technology it subsequently uses to compare the photos uploaded by customers with all the photos already in the database established and maintained by Clearview.

75

The AP therefore identifies Clearview as the data controller within the meaning of Article 4, introductory phrase and under 7, of the GDPR.

3.4 Lawfulness: Articles 5 and 6 of the GDPR

3.4.1 General

76

Pursuant to Article 5, first paragraph, introductory phrase and under a, of the GDPR, personal data must be processed in a manner that is lawful concerning the data subject.

77

Article 6, first paragraph, of the GDPR states that processing is only lawful if and to the extent that at least one of the conditions listed under a to f is met (grounds for processing).

78

In this case, only the ground mentioned in Article 6, first paragraph, introductory phrase and under f, of the GDPR is relevant (namely: legitimate interest), as Clearview is involved in one of the grounds examined by the AP.

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privacy statements has invoked this legal basis and because the other bases from Article 6, paragraph 1, of the GDPR are evidently not applicable in this case.¹¹

79

For a successful invocation of the legitimate interest basis (Article 6, paragraph 1, introductory phrase and under f, of the GDPR), three cumulative conditions must be met:

1. there must be a legitimate interest of the data controller or a third party;
2. the processing of personal data must be necessary for the pursuit of this legitimate interest;
3. in the balancing of interests between the data controller (or third party) and the data subject, the interests or fundamental rights and freedoms of the data subject(s) do not prevail.

3.4.2 Legitimate Interest (Condition 1)

3.4.2.1 Legal Framework for Legitimate Interest

80

For a successful invocation of Article 6, paragraph 1, introductory phrase and under f, of the GDPR, it must first be established that Clearview, as the data controller, pursues an interest of itself or a third party that can be qualified as legitimate. This means that these interests must be recognized as a legal interest in (general) legislation or elsewhere in the law. It must concern an interest that is also protected by law, deemed worthy of protection, and that must, in principle, be respected and can be enforced.

81

Furthermore, the interests must be existing and current, as follows from the case law of the Court of Justice of the European Union (CJEU).¹²

Thus, they must not be speculative, future, or derived. A legitimate interest must be lawful (in accordance with applicable law), sufficiently clear (sufficiently specific), and real and present (not speculative).¹³

3.4.2.2 Factual Findings on Legitimate Interest (Condition 1)

82

The Dutch Data Protection Authority (AP) has requested Clearview to further clarify this legitimate interest through an information request.¹⁴ Clearview has failed to do so, as it does not consider itself bound by the GDPR.

83

In Clearview's privacy statement of January 29, 2020, it is stated that Clearview only processes personal data if:

- the processing is necessary to perform our contractual obligations towards users or to take pre-contractual steps at user request, such as authenticating your log on to our services;
- the processing is necessary to comply with our legal or regulatory obligations, such as tax reporting or regulatory requirements;
- the processing is necessary for the legitimate interests of Clearview, and does not unduly affect your interests or fundamental rights and freedoms;
- in some cases, and as may be requested from you from time to time, we have obtained prior consent.

84

The first point mentioned above, in the opinion of the AP, pertains to the basis for the processing of personal data of users of the service. The second point relates to the basis for the processing of personal data to comply with (administrative) legal requirements imposed on Clearview. Thus, these points do not pertain to the processing of personal data for the purpose of establishing the database and the services offered by Clearview around it. Consent is also not applicable as a basis for these processes, as Clearview does not ask for and thus does not obtain consent from data subjects.

85

In its privacy statement of January 29, 2020, Clearview does not provide further clarification on the legitimate interest of Clearview mentioned in the third point. In the other privacy statements consulted for the AP investigation, there is no mention of any basis for the processing of personal data.

86

The current privacy statement of Clearview describes the purpose of collecting publicly available photos and information derived from them as follows:

“As part of Clearview’s normal business operations, it collects photos that are publicly available on the internet. The photos may contain metadata which may be collected by Clearview due to it being contained in the photos, and information derived from the facial appearance of individuals in the photos.”¹⁵

87

From the current privacy statement, it also follows that Clearview processes publicly available photos and information derived from them for the purpose of offering its products and services, improving its products and services, and training its algorithms.

88

Regarding the interests of third parties (in this case, the users), the AP notes that Clearview refers on its website to the interests that (potential) users of Clearview's services may have in the processing by Clearview. For example, Clearview states on its website¹⁶, among other things, that:

¹⁵ <https://www.clearview.ai/privacy-policy>

¹⁶ <https://app.hubspot.com/documents/6595819/view/640216868?accessId=a02cbe>

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“Law enforcement are overwhelmed with the amount of digital evidence they have access to. This should not come as a surprise given the proliferation of smartphones, tablets, computers, and other connected devices. Some estimates show that there will be 7.5 billion smartphones in the world by 2024. [...] As digital evidence grows, we find that the common thread is often faces – a person of interest’s face found online from internet crimes, found after CCTV footage captures a crime, found in

agency collected evidence like body cam footage, or from footage captured by citizen public safety apps like 'Ring'"

and:

"Clearview AI is committed to offering cutting-edge identity tools for responsible organizations charged with protecting society. Every day, our products are used to deter crime, rescue victims, and make real contributions to public safety. [...] We believe that when used by responsible organizations, our technology has the power to help build a safer, more secure society"

3.4.2.3 Legal assessment of legitimate interest

89

Below, the AP answers the question of whether the legitimate interest of Clearview, respectively the interests of any third parties, qualifies as a legitimate interest in the sense of Article 6, paragraph 1, introductory phrase and under f, of the GDPR.

The interest of Clearview itself, to provide access to the Clearview Platform for a fee

90

From paragraph 2.2.2 it follows that the business model of Clearview consists of providing access to the Clearview Platform for a fee.

91

It follows that Clearview's own interest lies in the fact that the processing of personal data is necessary to carry out its regular business activities. The Court of Justice of the European Union (CJEU) has determined that any processing of personal data is always an interference with the fundamental right to the protection of personal data.¹⁷ Although the freedom of entrepreneurship encompasses the freedom to engage in economic or commercial activities, this freedom does not extend to activities that almost entirely coincide with infringing the fundamental rights of others. In the case of the service offered by Clearview, the processing of personal data is not an incidental aspect of the service, but rather the processing is the service itself. Therefore, Clearview's own interest does not qualify as a legitimate interest in the sense of Article 6, paragraph 1, introductory phrase and under f, of the GDPR.

17 CJEU April 8, 2014, C-293/12 and C-594/12, ECLI:EU:C:2014:238.

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The interest of third parties in combating crime, locating victims, and other public tasks

92

Regarding the interest of the users of Clearview (government agencies and law enforcement), the AP notes that if Clearview argues that an interest of users can be found in combating crime, locating victims, and in other public tasks, these interests do not qualify as legitimate interests of third parties in the sense of Article 6, paragraph 1, under f, of the GDPR. These interests are broad societal interests that the Dutch and European legislator has laid down in specific and concrete legislation for public authorities (government agencies). Based on Article 6, paragraph 1, of the GDPR, public authorities cannot rely on the basis of legitimate interest in the context of the exercise of their tasks. Therefore, the interests of the users of Clearview do not qualify as legitimate interests.

3.4.2.4 Conclusion on legitimate interest

93

Insofar as Clearview invokes the basis of legitimate interest, this invocation already fails on the first condition. For the sake of completeness and diligence, the AP will, however, address the second and third conditions (necessity and balancing of interests).

3.4.3 Necessity (condition 2)

3.4.3.1 Legal framework of necessity

94

For a successful invocation of the basis of legitimate interest, the processing must also be necessary for the safeguarding of the legitimate interest. Regarding this second condition, the CJEU has determined that exceptions to the protection of personal data and the limitation thereof must remain within the bounds of what is strictly necessary.¹⁸ The concrete test is whether less intrusive means are available to achieve the same goal.¹⁹ This condition must also be examined in conjunction with the principle of 'data minimization', laid down in Article 5, paragraph 1, introductory phrase and under c, of the GDPR. According to this principle, personal data must be "adequate, relevant, and not excessive [...] in relation to the purposes for which they are collected or for which they are subsequently processed."²⁰

18 CJEU December 11, 2019, C-708/18, ECLI:EU:C:2019:1064, paragraph 46 and CJEU May 4, 2017, C-13/16, ECLI:EU:C:2017:336, paragraph 30.

19 Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC, April 9, 2014, Article 29 Data Protection Working Party, p. 35.

20 CJEU December 11, 2019, C-708/18, ECLI:EU:C:2019:1064, paragraph 48 and CJEU July 4, 2023, C-252/21, ECLI:EU:C:2023:537, paragraph 109.

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3.4.3.2 Factual findings "necessity"

95

Clearview has not provided any explanation regarding the necessity of the processing in response to the inquiry from the AP.

96

Clearview continuously collects photos and other associated personal data of individuals—such as the source of the image and any metadata—from public sources on the internet (see paragraph 8). This constitutes a form of 'unfocused scraping'. On Clearview's website, the service is promoted by offering an "unparalleled volume of data."²¹ It has been established in paragraph 9 that no measures are taken to exclude data of Dutch individuals from the database when collecting these photos and other personal data.

97

Regarding the retention periods applied, Clearview states in its current privacy policy: "We store personal information for as long as necessary to carry out the purposes for which we originally collected it and for other legitimate business purposes, including to meet our legal, regulatory, or other compliance obligations."²²

3.4.3.3 Legal assessment of necessity

98

In the opinion of the AP, the processing of personal data by Clearview is not limited to what is strictly necessary. The AP justifies this as follows.

99

With respect to the processing activities of Clearview that involve the collection and recording of personal data from public sources on the internet, it is important to note that Clearview collects this data on its own initiative, regardless of the search queries of the users. The personal data that Clearview continuously and in enormous quantities collects is then recorded in a database, while at the time of collection and recording, it is by no means certain that the relevant personal data is pertinent to the search queries of Clearview's customers. On the contrary, it is highly likely that a significant portion of the personal data in Clearview's database will not be relevant at all to the search queries of specific users. The AP considers it unlikely that the majority of the personal data in the Clearview database will ever be relevant for future search queries, given the enormous amount of personal data and the

variety of public digital sources that Clearview uses to collect this data. The processing of personal data therefore does not fall within the limits of what is strictly necessary to pursue the interests.

100

Additionally, the AP notes that the open wording of the retention period in Clearview's privacy policy allows it to retain the photos and other personal data in the database indefinitely. Considering the fact that changes in the appearance of individuals do not

21 <https://app.hubspot.com/documents/6595819/view/454213073?accessId=c85a92>

22 <https://www.clearview.ai/privacy-policy>

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preventing new data from being linked to old data, the retention of the enormous amount of personal data by Clearview – of which the AP has already concluded that a significant portion will not be relevant for the searches of Clearview users – without a concrete retention period constitutes a serious infringement of the privacy of the individuals concerned that is not proportionate to the purposes served by the processing.

3.4.3.4 Conclusion necessity

101

The AP concludes that Clearview does not limit itself to what is strictly necessary in the processing of personal data. Since the reliance on the legitimate interest basis also fails on the second condition, the processing of personal data by Clearview for the benefit of its services cannot be based on that either. For the sake of completeness, the AP will also address the third and final cumulative condition below.

3.4.4 The balancing of interests (condition 3)

3.4.4.1 Legal framework for balancing interests

102

The third cumulative condition for a successful reliance on legitimate interest is that the interests or fundamental rights and freedoms of the data subject(s) do not outweigh the legitimate interest invoked by the data controller. The case law of the CJEU indicates that the balancing of the conflicting rights and interests fundamentally depends on the specific circumstances of a concrete case.²³

103

First of all, the CJEU has determined that the severity of the infringement on the rights and freedoms of the data subject is an essential component of the required case-by-case assessment.²⁴ In this regard, particular attention must be paid to the nature of the personal data involved, especially its potentially sensitive nature, as well as to the nature and specific manner of processing the data in question, particularly the number of individuals who have access to it and the manner in which they obtain that access.

104

In assessing the severity of the infringement on the interests and fundamental rights and freedoms of the data subjects, the scope of the processing and its consequences for the data subjects must also be considered.²⁵ It is also relevant whether the data has been made public by the data controller or otherwise made accessible to a large number of individuals, or whether large amounts of personal data are processed in combination with other data. This is, for example, the case with profiling for commercial purposes. Apparently innocuous data

23 CJEU May 4, 2017, C-13/16, ECLI:EU:C:2017:336, paragraph 31.

24 CJEU December 11, 2019, C-708/18, ECLI:EU:C:2019:1064, paragraphs 56 and 57.

25 CJEU July 4, 2023, C-252/21, ECLI:EU:C:2023:537, paragraph 116.

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can, when processed on a large scale and combined with other data, lead to conclusions about more sensitive data.²⁶

105

In addition, account must be taken of the reasonable expectations of the data subject based on their relationship with the data controller. Recital 47 of the GDPR indicates that the question of whether there is a “relevant and appropriate” relationship between the data subject and the data controller is significant, which may include situations where the data subject is a customer or is employed by the controller. Furthermore, Recital 47 states that it concerns the expectations that the data subject reasonably has at the time and in the context of the collection of personal data. Similarly, the CJEU has considered in this context that the reasonable expectations of the data subject that their personal data will not be processed are relevant when, in the circumstances of the case, they can reasonably expect no further processing of it.²⁷ Established case law of the CJEU further indicates that this assessment can take into account that the severity of the infringement of the fundamental rights of the data subject as a result of that processing may vary depending on whether the relevant data has already been included in publicly accessible sources.²⁸

106

Moreover, in the balancing of interests, account must be taken of the safeguards that the data controller may have implemented. Safeguards can mitigate the consequences for data subjects and thus influence the balancing of interests. For instance, compliance with the legal obligations arising from the GDPR, including those regarding proportionality and transparency, can contribute to the assessment that the data controller meets the requirements of Article 6(1)(f) of the GDPR.²⁹

3.4.4.2 Factual findings balancing of interests

107

Clearview has not provided any explanation regarding the balancing of interests that must be made in the context of the third requirement for a successful reliance on the legitimate interest ground in response to the information request from the AP.

108

In paragraph 3.1.3.1, it has been established that the application of facial recognition technology by Clearview qualifies as processing of biometric data for the purpose of unique identification of a

²⁶ See Opinion 06/2014 on the concept of “legitimate interest of the data controller” in Article 7 of Directive 95/46/EC, April 9, 2014, Article 29 Data Protection Working Party, pp. 47-48.

²⁷ See Recital 47 of the GDPR and CJEU December 11, 2019, C-708/18, ECLI:EU:C:2019:1064, paragraph 58

²⁸ CJEU November 24, 2011, C-468/10 and C-469/10, ECLI:EU:C:2011:777, paragraphs 44 and 45; CJEU May 4, 2017, C-13/16, ECLI:EU:C:2017:336, paragraph 32;

CJEU December 11, 2019, C-708/18, ECLI:EU:C:2019:1064, paragraphs 54 and 55.

²⁹ See Opinion 06/2014 on the concept of “legitimate interest of the data controller” in Article 7 of Directive 95/46/EC, April 9, 2014, Article 29 Data Protection Working Party, pp. 49-50.

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person as defined in Article 4, introductory part and under 14, read in conjunction with Article 9, first paragraph, of the GDPR.

109

In addition, there is large-scale processing of personal data, which also concerns minors. Information on Clearview's website indicates that they offer the application of facial recognition software for identifying children as well. Clearview states on its website: “a federal agency’s child exploitation unit tripled the number of victims identified with Clearview AI.”³⁰

110

Furthermore, the AP has established that the photos collected by Clearview are also used to train the algorithm underlying the facial recognition technology.

111

Additionally, the AP has determined how Clearview's processing allows users of the service to monitor individuals and for what purposes Clearview users utilize the search functionality. By continuously collecting personal data from public sources and enriching the old data in the database with this new data, an archive of information about individuals is created over time. Users can search this archive of information by performing a search with a photo of an individual.

112

Finally, the AP has established that Clearview does not actively take measures to remove photos and associated data from its database when they are no longer published on the public internet (for example, when an individual adjusts their privacy settings on their social media account or a photo is taken offline from a publicly accessible website). In such cases, the individual must submit a request to delete a photo from the Clearview database at the moment the relevant photo is no longer publicly accessible on the internet.

3.4.4.3 Assessment of the balancing of interests

Severity of the infringement

113

Regarding the nature of the data involved, the AP has determined that Clearview processes biometric personal data on a large scale, which also concerns minor individuals. Recital 38 of the GDPR states that this vulnerable group of individuals has the right to specific protection under the GDPR, as they are likely less aware of the associated risks, consequences, and safeguards of their rights in relation to the processing of personal data. This specific protection must particularly apply to the use of personal data of children for the creation of personality or user profiles.

114

Regarding the nature and specific manner of processing the personal data by Clearview, the AP has concluded that there is a significant infringement on the personal privacy of the individuals involved.

30 <https://www.clearview.ai/child-exploitation>

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Clearview systematically processes various types of personal data on a large scale from a wide range of sources that are combined and analyzed in a database, without Clearview being fully transparent about this. The processing of personal data is not only complex and extensive, but it also provides Clearview's clients with the ability to search for data about individual persons and obtain a detailed picture of the lives of these individuals. These processes are therefore very intrusive for the individuals involved.

115

Moreover, the processing may have negative consequences for the individuals involved. Since Clearview's database is continuously enriched with new personal data, users can – through searches for individuals appearing in the images – track the behavior of individuals over time.

116

Given the above, there is a very serious infringement on the interests and fundamental rights of the individuals involved.

Reasonable expectations

117

As stated in paragraph 105, the reasonable expectations of the individual must be assessed based on their relationship with the data controller. At the time of processing, there must be a reasonable and appropriate relationship between them. In the case of the service provided by Clearview, this is not the

case: there is no relationship whatsoever between Clearview and the individuals whose personal data is included in Clearview's database. For this reason alone, individuals should not expect their personal data to be processed by Clearview.

118

The public nature of the data collected by Clearview for its services does not imply that the individuals should have been aware that their personal data would be used in the manner that Clearview does in this specific case. In this context, it is particularly relevant that the collection of personal data is carried out automatically, without the individual receiving prior or subsequent notification. Furthermore, the database and facial recognition software of Clearview are not publicly accessible. The majority of the individuals are also therefore not even aware of the processing by Clearview.

119

The AP concludes that individuals reasonably do not need to have any expectation regarding the processing of their personal data by Clearview.

Safeguards in place

120

Regarding the safeguards that Clearview could implement to limit the infringement, the AP has established that Clearview does not actively take measures to remove photos and associated data from the database when they are no longer published on the public internet.

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121

Regarding the information that Clearview publishes on its website, it should be noted that Clearview does not comply with the legal obligations arising from the GDPR. Given what is mentioned below in paragraph 156, it is unclear for Dutch citizens that their photos (including metadata) are processed by Clearview for facial recognition purposes. Affected individuals can only become aware of this by chance when they encounter the name Clearview, for example, in media reports. There can therefore be no guarantee for affected individuals against unwanted consequences.

122

The AP has not been shown any other measures taken to limit the infringement.

Balancing of interests

123

Based on all the aforementioned circumstances, the AP concludes that 1) there is a very serious infringement of the interests and fundamental rights of the affected individuals, 2) affected individuals have no reasonable expectation or need to have an expectation of the processing of their personal data by Clearview, and 3) Clearview has not taken sufficient safeguards to mitigate the consequences for affected individuals.

124

In contrast, the interest that Clearview invokes in the privacy statement of January 29, 2020, which consists of conducting commercial activities with the processing of personal data, is noted. Even if it were assumed that this interest could be a legitimate interest, it cannot be given the same weight as the interests and fundamental rights of affected individuals that necessitate the protection of their personal data. The interests of the affected individuals outweigh Clearview's own interest in conducting commercial activities, as the interests of the affected individuals extend (far) beyond merely monetizing the processing of personal data. In light of this, as well as the seriousness of the infringement outlined above, the lack of a reasonable expectation of processing, and the fact that Clearview has not taken sufficient safeguards to mitigate the consequences for affected individuals, the AP can only conclude that the interests of the affected individuals must prevail over the alleged – and unsubstantiated – legitimate interests claimed by Clearview.

3.4.4.4 Conclusion of the balancing of interests

125

The AP concludes that the interests, fundamental rights, and freedoms of the affected individuals that necessitate the protection of personal data outweigh the interests invoked by Clearview. The appeal to the basis of legitimate interest would – if it were to be considered – fail on the third condition.

126

Considering the consequences of the processing for the affected individuals, the seriousness of the infringement, and the lack of safeguards by Clearview that sufficiently mitigate the consequences for affected individuals, the AP concludes that the interests of the affected individuals in this case prevail over the interest of Clearview.

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3.4.5 Conclusion regarding legality (Articles 5 and 6 of the GDPR)

127

Clearview does not meet any of the three cumulative conditions to successfully invoke the basis of legitimate interest. As a result, Clearview has no lawful basis for the processing of personal data. Clearview has thus acted unlawfully since at least January 13, 2019, as it is in violation of Article 5, paragraph 1, introductory part and under a, read in conjunction with Article 6, paragraph 1, of the GDPR. Clearview has not yet ceased this violation.

3.5 Legality: Article 9 of the GDPR

3.5.1 Legal framework

128

Article 9, paragraph 1, of the GDPR states, insofar as relevant here: “Processing of (...) biometric data for the purpose of uniquely identifying a person (...) is prohibited.”

129

Recital 51 of the GDPR indicates that personal data that are particularly sensitive by their nature regarding fundamental rights and freedoms deserve specific protection, as the context of their processing may pose significant risks to fundamental rights and freedoms. According to this recital, such personal data may not be processed unless the processing is permitted in specific cases mentioned in the GDPR.

130

Article 9, paragraph 2, of the GDPR states, insofar as relevant here: “Paragraph 1 does not apply where one of the following conditions is met:

a) the data subject has given explicit consent to the processing of those personal data for one or more specified purposes, except where Union law or Member State law provides that the prohibition in paragraph 1 may not be lifted by the data subject;

(...)

e) the processing relates to personal data which the data subject has made manifestly public.”

131

‘Manifestly public data’, as referred to in Article 9, paragraph 2, under e, of the GDPR, is present when the data subject has explicitly and through an unequivocal active act intended to make the relevant personal data accessible to a wide audience.

3.5.2 Factual findings

31 The AP has used this date as the start date of the infringement because the oldest privacy statement from January 13, 2019, indicates that the processing by Clearview was already taking place at that time.

32 This follows from Clearview's privacy statement of January 1, 2019, see paragraph 151.

33 CJEU July 4, 2023, C-252/21, ECLI:EU:C:2023:537, paragraph 77.

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132

From paragraph 2.1 it follows that Clearview converts collected and uploaded photos into vectors using facial recognition technology with the aim of being able to uniquely identify individuals for its users.

133

The privacy statement of Clearview states that Clearview, as part of its business activities, collects publicly accessible photos from the internet with the aim of offering products and services, improving products and services, and training algorithms.

134

The publicly accessible photos from the internet collected by Clearview are converted into a vector and stored together with any metadata in the database. Users of the service can search this database.

3.5.3 Legal Assessment

135

It is established that the processing by Clearview is related to the application of facial recognition technology to the photos collected by Clearview and/or uploaded by users. The personal data resulting from this processing qualifies as biometric data within the meaning of Article 4, introductory phrase and point 14, of the GDPR and thus constitutes a "special category of personal data" as referred to in Article 9 of the GDPR.

136

The above means that for this processing, the processing prohibition laid down in Article 9, paragraph 1, of the GDPR applies, unless one of the exceptions mentioned in the second paragraph of that provision is applicable. In this regard, the AP notes that Article 9, paragraph 2, of the GDPR must be interpreted restrictively according to the Court of Justice of the European Union.³⁴

137

Clearview has not invoked any of the exceptions mentioned in Article 9, paragraph 2, of the GDPR in the examined privacy statements or elsewhere.

138

In this case, only the exception mentioned in Article 9, paragraph 2, introductory phrase and point e, of the GDPR may be relevant. This exception applies only to data that has been made manifestly public by the data subject. This is the case, as previously considered, if the data subject has expressly and through an unequivocal active act intended to make the personal data in question publicly accessible to a wide audience.

139

The other exceptions from Article 9, paragraph 2, of the GDPR are evidently not applicable in this case. As already noted in paragraph 77, no consent is obtained from the data subjects, so the exception mentioned in Article 9, paragraph 2, introductory phrase and point a, of the GDPR also does not apply.

34 See, for example, CJEU July 4, 2023, C-252/21, ECLI:EU:C:2023:537, paragraph 76.

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140

In the opinion of the AP, the exception mentioned in Article 9, paragraph 2, introductory phrase and point e, of the GDPR is also not applicable. The mere circumstance that the aforementioned personal data can be found online does not mean that the data subjects have expressly and through an unequivocal active act intended to make all that data publicly accessible to a wide audience. This is,

for example, not the case when a photo of (the face of) a data subject has been posted online by a third party. The situation where a user has set their social media profile to private and this user does not have the ability to hide the profile picture (or is not aware of that ability) is also not considered manifestly public disclosure, as intended here. There is, in fact, no indication that the user has expressly and through an unequivocal active act intended to make their personal data publicly accessible to a wide audience.

3.5.4 Conclusion regarding legality (Article 9 of the GDPR)

141

Since Clearview cannot invoke any of the exceptions in Article 9, paragraph 2, of the GDPR, Clearview has been acting in violation of Article 9, paragraph 1, of the GDPR since at least January 13, 2019³⁵ due to the processing of a special category of personal data (biometric data) of data subjects located on Dutch territory. Clearview has not yet ceased this violation.

3.6 Transparency Obligations: Articles 5, 12, and 14 of the GDPR

3.6.1 Legal Framework

142

Article 5, paragraph 1, introductory phrase and point a, of the GDPR states that personal data must be processed in a manner that is transparent to the data subject. Transparency is, along with legality and fairness, one of the fundamental principles of personal data processing.

143

Recital 60 of the GDPR states that in accordance with the principles of transparency, data subjects must be informed of the fact that processing is taking place and the purposes thereof.

144

Recital 39 of the GDPR also states that data subjects must be made aware of the risks, rules, safeguards, and rights related to the processing of personal data, as well as the manner in which they can exercise their rights regarding the processing.

145

The Guidelines on Transparency in accordance with Regulation (EU) 2016/679 (hereinafter: Transparency Guidelines) emphasize that one of the core elements of the principle of transparency and fairness is that data subjects are informed in advance of the scope and consequences of the

35 See footnote 31.

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processing must be able to determine and not be surprised later by other ways in which their personal data has been used.³⁶

146

Article 12, paragraph 1, of the GDPR stipulates that the data controller takes appropriate measures to ensure that data subjects receive information regarding the processing in a concise, transparent, understandable, and easily accessible form, and in clear and simple language. The information is provided in writing or by other means.

147

Article 14, paragraphs 1 and 2, of the GDPR sets out the specific substantive requirements that data controllers must meet when informing data subjects if the information has not been obtained directly from the data subject. The Guidelines on Transparency clarify the nature, scope, and content of these requirements.³⁷ Since Clearview does not receive personal data directly from data subjects, but through other (public) sources such as social media platforms, Article 14 of the GDPR is leading for assessing whether Clearview complies with the transparency obligations of the GDPR.

148

The Guidelines on Transparency state that data controllers must present the information in an efficient

and concise manner to prevent information fatigue and that this information must be clearly distinguished from other, non-privacy-related information. Additionally, the information must be presented in the simplest possible way, avoiding complicated sentences and language structures. The information must be concrete and definitive, contain no abstract or ambiguous formulations, and leave no room for different interpretations. In particular, the purposes of and the legal basis for the processing of personal data must be clear.³⁸

3.6.2 Factual Findings

149

The AP has examined four different versions of Clearview's privacy statement:

- the privacy statement last amended on December 29, 2022 (the most recent privacy statement);
- the privacy statement last amended on March 20, 2021;
- the privacy statement last amended on January 29, 2020; and
- the privacy statement last amended on January 13, 2019.

150

The AP compared these four documents with the requirements set out in Article 14 of the GDPR. The results of this comparison are included in the table below:

Type of Information

Privacy Statement

December 29, 2022

Privacy Statement

March 20, 2021

Privacy Statement

January 29, 2020

Privacy Statement

January 13, 2019

36 Guidelines on Transparency, point 10.

37 Guidelines on Transparency, point 23 and onwards.

38 Guidelines on Transparency, points 8-13.

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The identity and
contact details of the data controller

Art. 14, paragraph 1, under a

+

+

+

+

Contact details

Data Protection Officer

Art. 14, paragraph 1, under b

-

-

+

+

The purposes of and the

legal basis for the

processing

Art. 14, paragraph 1, under c

-

-

+/-

(mention of possible
grounds, no
reference to
Articles 6 and 9 GDPR)

+/-

(mention of possible
grounds, no
reference to
Articles 6 and 9 GDPR)

The categories of
personal data

Art. 14, paragraph 1, under d

+

+

+

+

The recipients of the
data

Art. 14, paragraph 1, under e

-

-

-

-

Details of transfers to
third countries

Art. 14, paragraph 1, under f

-

-

-

(mention that
international transfer may
occur,
but not to
which countries)

-

(mention that
international transfer may
occur,
but not to
which countries)

Retention periods

Art. 14, paragraph 2, under a

+

+

-

-

The legitimate
interests of Clearview

Art. 14, paragraph 2, under b

-

-

-
-
Rights of data subjects
Art. 14, paragraph 2, under c

-
-
(only access)

+
+
The right to withdraw
consent at any time
Art. 14, paragraph 2, under d
n/a

n/a
n/a
n/a
The right to lodge a complaint with a
supervisory authority
Art. 14, paragraph 2, under e

-
-
+
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The source from which the
personal data
originates
Art. 14, paragraph 2, under f

-
-
-
-

The existence of
automated
decision-making
Art. 14, paragraph 2, under g

n/a
n/a
n/a
n/a

151

The four different privacy statements of Clearview describe how Clearview uses information and what information Clearview collects from (1) the users of Clearview's products, (2) Clearview's business contacts (such as service providers and processors of Clearview), and (3) "others online." Thus, the four privacy statements clarify that Clearview processes photos that are publicly available on the internet (and the associated metadata such as geolocation), personal data of users (such as name and contact details), and data of individuals who have provided their data to Clearview (for example, in the context of a request for access). The reason why Clearview processes this information is described by

Clearview in limited terms (see paragraph 152 below) and in any case without reference to the specific grounds (and any legitimate interests) from Articles 6 and 9 of the GDPR. Regarding how long the data is subsequently retained, Clearview states in the two most recent privacy statements: “as long as possible to carry out the purposes.”

152

As a 'global' reason for these processing activities, Clearview states that it collects this data for the provision of its products and services. Regarding the specific processing of the template (vectors) and the photos themselves, the most recent privacy statement (dated December 29, 2022) states the following:

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The reason for this specific processing, according to the privacy statement, is to provide a service to Clearview's customers such as government agencies, law enforcement services, or other public/private safety services. In this way, Clearview assists its customers in investigations into potential violations of federal or local laws and regulations, according to Clearview. Besides the fact that the photos come from public sources (“From the internet”), the privacy statements do not specify which particular sources Clearview uses for this purpose. In the first two privacy statements found on the web by the AP (dated January 13, 2019, and January 29, 2020), the following is also stated regarding the use of the photos:

“Clearview does not compile, analyze, combine with other data, or otherwise process the images we collect in order to link them to real persons on behalf of users.”

154

The extract above (under paragraph number 152) also illustrates that Clearview does not share personal data derived from the (templates) of the collected photos with third parties for online marketing purposes, but does share it with service providers, suppliers, and processors. In all four privacy statements studied by the AP, there is a brief explanation regarding when Clearview provides personal data to these third parties. In none of the cases are the specific categories of recipients mentioned or the recipients themselves. It is also unclear to which countries outside the United States the data is transferred and what safeguards apply.

155

Regarding the mention of the rights of data subjects, the privacy statements show a shift over time. The privacy statements of March 20, 2021, and December 29, 2022 (the two most recent privacy statements) do not specify what the rights of data subjects entail and how data subjects can take steps to exercise that right. However, there are separate web pages for residents of California, Virginia, and Illinois with specific forms for submitting, for example, a request for access, rectification, and/or deletion. These privacy statements also do not mention that the data subject has the right to lodge a complaint with a supervisory authority. The privacy statements of January 29, 2020, and January 13, 2019, do mention all the rights of data subjects, and the privacy statement of January 29, 2020, also mentions the right to lodge a complaint with a supervisory authority.

3.6.3 Legal Assessment

156

None of the privacy statements reviewed by the AP comply with the transparency obligations arising from Article 12, paragraph 1, read in conjunction with Article 14 of the GDPR.

The main objection is that it is unclear to data subjects that Clearview (possibly) processes their photos (including metadata) for facial recognition purposes. Data subjects can only become aware of this by chance when they encounter the name Clearview, for example, in media reports.³⁹

157

More specifically, Clearview violates these provisions by failing to take appropriate measures to ensure

that data subjects receive the following information: (1) the legal grounds for the processing of personal data (including a reference to the applicable provision of Article 9 of the GDPR); (2) the retention periods; (3) the (categories of) recipients of the data; (4) the details of transfers to third countries; (5) the rights of data subjects⁴⁰; (6) the possibility to lodge a complaint with a supervisory authority (with the exception of the privacy statement of January 29, 2020); and (7) the source from which the personal data originates (if the specific source is not mentioned: the nature of the sources and the type of organization/industry/sector).

158

Moreover, merely placing a privacy statement on Clearview's website is not sufficient to be considered "providing" as referred to in Article 14 of the GDPR. The AP notes in this regard that Clearview collects personal data from public sources for its services through indiscriminate scraping and stores it, including photos, the URLs of those photos, metadata of those photos, and vectors corresponding to the face(s) in those photos, while data subjects are generally not informed of this by Clearview (not even afterwards). Clearview must also actively take steps to provide the relevant information to the data subject. Article 12, paragraph 1, of the GDPR stipulates that the data controller provides the intended information and that the data controller takes appropriate measures to ensure that the data subject receives the information. Therefore, it cannot suffice to merely mention information on its website.

39 Data subjects cannot ascertain this with certainty, as Clearview no longer responds to access requests, see below in paragraph 3.7.

40 This only applies to the privacy statements of March 20, 2021, and December 29, 2022, although the version of March 20, 2021, still mentioned the right to access.

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3.6.4 Conclusion regarding the transparency obligations (Articles 5, 12, and 14 of the GDPR)

159

The AP concludes that Clearview has been acting in violation of Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR at least since January 13, 2019. By failing to comply with this obligation, the AP also concludes that Clearview is violating the principles of transparency and fair data processing, as laid down in Article 5, paragraph 1, introductory part and under a, of the GDPR. Clearview has not yet ceased these violations.

3.7 (Facilitating) the right of access for data subjects: Articles 12 and 15 of the GDPR

3.7.1 Legal framework

160

Article 12, paragraph 2, of the GDPR stipulates that the data controller shall facilitate the exercise of the rights under Articles 15 to 22 of the GDPR. In this context, Recital 59 of the GDPR states that arrangements should be in place to enable the data subject to exercise their rights under the GDPR more easily.

161

Pursuant to Article 12, paragraph 3, of the GDPR, the data controller shall provide data subjects with information without delay, and in any event within one month of receiving a request under Articles 15 to 22 of the GDPR, regarding the action taken in response to the request. Depending on the complexity of the requests and the number of requests, this period may be extended by a further two months.

162

Under Article 15, paragraph 1, of the GDPR, a data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, to access that personal data.

3.7.2 Factual findings

163

The AP has established that the most recent privacy statement of Clearview dated December 29, 2022, does not mention the possibilities for EU citizens to exercise their rights as data subjects as intended in Articles 15 to 22 of the GDPR.

164

Additionally, Clearview informed the AP in its response dated March 17, 2023, that it has stopped responding to access requests: “Clearview AI does not respond to Art. 15 GDPR access requests, because it is not subject to the GDPR as we have mentioned. In the past, Clearview AI voluntarily provided European residents with information about their appearance or non-appearance in Clearview AI search results upon request. However, we have terminated that practice, both to reduce potential security risks and to better reflect the fact that Clearview AI’s activities are not within the territorial scope of the GDPR. As such, Article 15 is not applicable to Clearview AI.”

165

The AP has received two complaints regarding two access requests submitted to Clearview on October 6, 2022, and December 20, 2022, respectively. The complainants have informed the AP that Clearview did not respond to those requests.

3.7.3 Legal assessment and conclusion regarding the rights of data subjects (Articles 12 and 15 of the GDPR)

166

Regarding the two access requests of October 6, 2022, and December 20, 2022, it is established that Clearview did not respond to those requests. By doing so, Clearview has violated Article 12, paragraph 3, read in conjunction with Article 15 of the GDPR.

167

The AP considers the violation of Article 12, paragraph 3, read in conjunction with Article 15 of the GDPR in relation to whether Clearview also violates Article 12, paragraph 2, of the GDPR. In this regard, the AP considers the following.

168

Pursuant to Article 12, paragraph 2, of the GDPR, the data controller must facilitate the exercise of the rights of the data subject under Article 15. However, Clearview fails to facilitate data subjects in exercising their right of access. Firstly, it has been established that Clearview did not respond to the two aforementioned access requests. Furthermore, Clearview has stated in response to a question from the AP that it will no longer respond to access requests at all. This policy has been reflected in Clearview's amended privacy statement dated December 29, 2022.

169

In light of the above, the AP concludes that Clearview has been violating Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR at least since October 6, 2022, by not facilitating data subjects located in the Netherlands in exercising their right of access. Clearview has not yet ceased this violation.

3.8 Representative of a data controller not established in the Union: Article 27 of the GDPR

3.8.1 Legal framework

170

Article 4, introductory part and under 17, of the GDPR defines a representative as a natural or legal person established in the European Union who, pursuant to Article 27 of the GDPR,

42 The AP considers October 6, 2022, as the starting date of the violations, being the date of the first access request for which a data subject has lodged a complaint with the AP, see paragraphs 1 and 165.

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designated in writing by the data controller or the processor to represent the data controller or the processor in relation to their respective obligations under the GDPR.

171

Article 27, paragraph 1, of the GDPR states that when Article 3, paragraph 2, of the GDPR is applicable, the data controller or the processor shall designate a representative in the Union in writing. Paragraph 2 of Article 27 of the GDPR states that this obligation does not apply to:

- a. incidental processing that does not involve large-scale processing of special categories of personal data, as referred to in Article 9, paragraph 1, of the GDPR, nor processing of personal data related to criminal convictions and offenses as referred to in Article 10 of the GDPR, and where the likelihood is low that it poses a risk to the rights and freedoms of natural persons, taking into account the nature, context, scope, and purposes of processing, or
- b. a public authority or body.

172

Pursuant to Article 27, paragraph 3, of the GDPR, this representative must be established in one of the member states of the European Union where the data subjects are located whose personal data are processed in connection with the offering of goods or services to them, or whose behavior is monitored.

****3.8.2 Factual Findings****

173

In paragraph 3.1.3.2, the AP has already concluded that Clearview processes personal data. Furthermore, it has been determined that Article 3, paragraph 2, of the GDPR applies to Clearview and that Clearview's processing activities relate to monitoring the behavior of data subjects in the Union.

174

The AP has established that Clearview has not designated a representative within the Union for the processing of personal data.

175

Consultation by the AP of the Trade Register of the Chamber of Commerce has not yielded any companies affiliated with Clearview. A similar consultation of the European Justice portal (E-Justice portal) has also not revealed any establishment or representative of Clearview in the European Union.

176

The AP has asked Clearview whether it has an establishment or representative within the Union. Clearview did not respond to that question. Clearview has stated that it does not have an establishment within the Union. Clearview claims that it has no customers in the Netherlands and the Union and that it does not engage in monitoring behavior within the Union. See also paragraph 50 of this decision in which Clearview has informed the AP that it will no longer assess access requests (from EU citizens).

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The Clearview website, and a search on the internet itself, also do not show any representative or establishment address of Clearview in the Union.

****3.8.3 Legal Assessment and Conclusion Regarding the Representative of a Data Controller Not Established in the Union (Article 27 of the GDPR)****

178

As already concluded in paragraph 68, the processing of personal data by Clearview for its service falls under the territorial scope of the GDPR.

179

Furthermore, the AP finds that Clearview has not designated a representative in the EU as referred to in Article 4, introductory part and under 17, of the GDPR, although this is required under Article 27, paragraph 1, of the GDPR. The exceptions mentioned in Article 27, paragraph 2, of the GDPR do not apply because Clearview is a private party that processes special categories of personal data on a large scale.

180

The AP therefore concludes that Clearview is acting in violation of Article 27, paragraph 1, of the GDPR. Clearview has not yet ceased this violation.

****4. Fines****

181

Clearview has committed the following violations:

1.

Unlawful processing of personal data

Clearview has been processing personal data of data subjects located on Dutch territory for its service 'Clearview for law enforcement and public defenders' since at least January 13, 2019, without a lawful legal basis, thereby violating Article 5, paragraph 1, introductory part and under a, read in conjunction with Article 6, paragraph 1, of the GDPR (hereinafter also: violation 1). Clearview has not yet ceased this violation.

2.

Unlawful processing of special personal data

Clearview has been violating Article 9, paragraph 1, of the GDPR since at least January 13, 2019, for its service 'Clearview for law enforcement and public defenders' due to the processing of a special category of personal data (biometric data) of data subjects located on Dutch territory (hereinafter also: violation 2). Clearview has not yet ceased this violation.

3.

Violation of transparency obligation

Clearview has been violating Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR as well as Article 5, paragraph 1, introductory part and under a, of the
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GDPR by failing to take appropriate measures to ensure that data subjects located in the Netherlands receive all information referred to in Article 14 of the GDPR (hereinafter also: violation 3). Clearview has not yet remedied this violation.

4.

Failure to respond to two access requests

Clearview has violated Article 12, paragraph 3, in conjunction with Article 15 of the GDPR by wrongly failing to respond to two access requests from data subjects (hereinafter also: violation 4).

5.

Failure to assist data subjects in exercising their right of access

Clearview has been violating Article 12, paragraph 2, in conjunction with Article 15 of the GDPR since at least October 6, 2022, by not assisting data subjects located in the Netherlands in exercising their

right of access (hereinafter also: violation 5). Clearview has not yet remedied this violation.

6.

No representative designated in the Union

Clearview violates Article 27, paragraph 1, of the GDPR by not designating a representative in the Union as referred to in Article 4, introductory part and under 17, of the GDPR (hereinafter also: violation 6). Clearview has not yet remedied this violation.

182

The AP is authorized to impose an administrative fine under Article 58, paragraph 2, introductory part and under i, in conjunction with Article 83 of the GDPR, and read in conjunction with Article 14, paragraph 3, of the Implementation Act General Data Protection Regulation (hereinafter: UAVG). The case law of the Court of Justice of the European Union (CJEU) indicates that the wording of Article 83, paragraph 2, of the GDPR implies that breaches of the provisions of the GDPR committed by the data controller in a culpable manner – that is, breaches committed intentionally or through negligence – may lead to the imposition of an administrative fine on the data controller under that article.⁴³ In this case, there are culpable actions by Clearview for which the AP will impose fines.

183

In the opinion of the AP, the imposition of fines is not only appropriate but also necessary, as Clearview has violated the rights and freedoms of citizens in various ways. The AP considers this serious and therefore proceeds to impose fines for violations 1 through 5.

184

Since violation 5 (failure to assist data subjects in exercising their right of access) necessarily leads to violation 4 (failure to respond to two access requests), the AP imposes one fine for these two violations.

⁴³ CJEU December 5, 2023, C-683/21, ECLI:EU:C:2023:949 (NVSC), paragraphs 73 and 83; CJEU December 5, 2023, C-807/21, ECLI:EU:C:2023:950 (Deutsche Wohnen), paragraphs 68 and 76.

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185

The AP, considering Article 50 of the Charter of Fundamental Rights of the European Union (hereinafter: Charter) and Article 5:43 of the General Administrative Law Act (hereinafter: Awb), refrains from imposing a fine for the violation of Article 27, paragraph 1, of the GDPR (violation 6, no representative designated in the Union), since Clearview has already been fined for the same violation by the Italian Data Protection Authority and the Greek Data Protection Authority. These decisions have already become final.⁴⁴

Guidelines for calculating administrative fines

186

The EDPB approved the final text of the Guidelines 04/2022 on the calculation of administrative fines under the GDPR (hereinafter: the Guidelines for calculating administrative fines) in its plenary meeting on May 24, 2023.⁴⁵ The AP will apply these Guidelines to this case.⁴⁶ The (national) policy rules of the AP regarding the determination of the amount of administrative fines do not apply to violations of the GDPR committed by companies.⁴⁷

4.1 System for determining the amount of the fine

187

The Guidelines for calculating administrative fines describe the following method for calculating administrative fines for violations of the GDPR:

1. mapping which and how many actions and violations are under assessment;

2. determining the starting amount for further calculation of the fine;
3. checking for mitigating or aggravating circumstances that necessitate an increase or decrease of the fine;
4. checking which maximum amounts apply for the violations and whether those maximum amounts are not exceeded as a result of increases applied in previous or subsequent steps;
5. checking whether the calculated final amount of the fine meets the requirements of effectiveness, deterrence, and proportionality, and if necessary, adjusting the fine accordingly.

188

These steps will be followed in sequence. In paragraph 4.2, the AP will address the starting amounts for the violations. In paragraph 4.3, the AP will assess the mitigating or aggravating circumstances for the violation. Finally, in paragraph 4.4, the AP will determine whether the legal maximum fine is exceeded and whether the fines are effective, proportionate, and deterrent.

44 See the ruling of the Central Appeals Tribunal of July 3, 2018 (ECLI:NL:CRVB:2018:2059), paragraphs 4.1-4.5.

See also CJEU September 14, 2023, C-27/22, ECLI:EU:C:2023:265.

45 See also Guidelines 04/2022 for the calculation of administrative fines under the GDPR.

46 See also

<https://www.autoriteitpersoonsgegevens.nl/actueel/nieuw-boetebeleid-voor-overtredingen-avg>

47 See <https://www.autoriteitpersoonsgegevens.nl/documenten/boetebeleidsregels-autoriteit-persoon-sgegevens-2023>

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4.2 Starting amounts for the violations

4.2.1 Step 1: Establishing actions and determining violations

189

To determine the starting amount of the fine, it must first be examined whether there are one or more sanctionable behaviors, as described in the Guidelines for calculating administrative fines.

190

The AP has first concluded that Clearview processes personal data of individuals located in the Netherlands for its service 'Clearview for law enforcement and public defenders' without a lawful basis. In doing so, Clearview has violated Article 5, paragraph 1, introductory part and under a, read in conjunction with Article 6, paragraph 1, of the GDPR (violation 1, unlawful processing of personal data). The AP has also concluded that Clearview has violated Article 9, paragraph 1, of the GDPR by processing a special category of personal data (biometric data) of individuals located in the Netherlands for that service (violation 2, unlawful processing of special personal data).

191

Furthermore, the AP has concluded that Clearview violates Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR, as well as Article 5, paragraph 1, introductory part and under a, of the GDPR by failing to take appropriate measures so that individuals located in the Netherlands receive all the information referred to in Article 14 of the GDPR (violation 3, violation of the transparency obligation). Additionally, the AP has concluded that Clearview violates Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR and Article 12, paragraph 3, read in conjunction with Article 15 of the GDPR by not facilitating individuals located in the Netherlands in exercising their right of access by not responding to access requests (violations 4 and 5).

192

Although independently punishable, the violations concerning the lawfulness of processing (violations 1 and 2, unlawful processing of – special – personal data), as well as the violation regarding the failure to take appropriate measures so that individuals receive all the information referred to in Article 14 of

the GDPR (violation 3, violation of the transparency obligation), must be regarded as infringements related to the same or related processing activities as referred to in Article 83, paragraph 3, of the GDPR. This article states that if a data controller or processor intentionally or negligently commits a violation of multiple provisions of this regulation concerning the same or related processing activities, the total fine shall not exceed that for the most serious infringement. The AP will take this into account when determining the final amount of the fine (see paragraph 4.3).

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193

Violations 4 and 5 (not responding to two access requests and not facilitating individuals in exercising their right of access), however, constitute a separate infringing behavior. The AP takes into account, first of all, the fact that Clearview later (namely in 2022) decided no longer to respond to access requests. Secondly, the behavior does not necessarily pertain to the same group of individuals. Not every individual whose personal data is processed or to whom the privacy statement applies makes an access request.

4.2.2 Step 2: Starting amounts

194

The starting amount serves as the basis for the further calculation of the fine amount in the subsequent steps, taking into account all relevant facts and circumstances. The Guidelines for calculating administrative fines state that the starting amount is determined based on three elements: i) the classification of the violations according to Article 83, paragraphs 4 to 6, of the GDPR; ii) the severity of the violation; and iii) the turnover of the company. The following discusses all three elements.

Ad i) Classification of the violations according to Article 83, paragraphs 4 to 6, of the GDPR

195

As stated in the Guidelines for calculating administrative fines, almost all obligations of the data controller are categorized in the provisions of Article 83, paragraphs 4 to 6, of the GDPR. The GDPR distinguishes between two types of violations. On the one hand, violations that are sanctionable under Article 83, paragraph 4, of the GDPR, for which a maximum fine of €10 million applies (or, in the case of a company, 2% of the annual turnover, if that is higher); on the other hand, violations that are sanctionable under Article 83, paragraphs 5 and 6, of the GDPR, for which a maximum fine of €20 million applies (or, in the case of a company, 4% of the annual turnover, if that is higher). With this distinction, the legislator has provided an initial indication in abstracto of the seriousness of the violation: the more serious the violation, the higher the fine.

196

In this case, considering Article 83, paragraph 5, of the GDPR and as far as relevant, for violations 1 to 5, an administrative fine of up to €20 million can be imposed. This categorization indicates that these violations are considered serious by the legislator.

Ad ii) Severity of the violations

197

In determining the severity of the violation, account must be taken of the nature, seriousness, and duration of the infringement, as well as the intentional or negligent nature of the violation and the categories of personal data involved.

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****Nature of the violations****

198

Regarding the nature of violations 1 and 2 (unlawful processing of – special – personal data), the AP notes the following. Article 6 of the GDPR elaborates on the principle of lawfulness established in Article 5 of the GDPR. This is one of the six fundamental principles of the GDPR and thus a fundamental requirement for the protection of personal data. The principle of lawfulness guarantees the control of data subjects over their personal data. By violating this principle, that control is compromised. Article 9 of the GDPR additionally provides a higher level of protection for data whose processing may lead to situations where a serious risk could arise due to the consequences that processing may have for data subjects. This risk is deemed so harmful that the processing of this data is prohibited unless an exception applies.

199

The nature of violations 1 and 2 in this case concerns the unlawful processing of (biometric) personal data of data subjects. These articles represent the conditions for lawfulness and thus the fundamental requirements for processing under the GDPR. Regarding the nature of these violations, it must also be taken into account that the processing relates to special categories of personal data, namely biometric data, for which a higher level of protection applies.

200

Regarding the nature of violations 3, 4, and 5 (breach of transparency obligations and breaches of – the facilitation obligation of – the right of access), the AP notes that the data controller must provide the data subject with the information necessary to ensure proper and transparent processing in relation to the specific circumstances and context in which the personal data is processed. Data subjects have the right to receive all information mentioned in Article 14, paragraphs 1 and 2, of the GDPR, so that they are able to exercise their other rights under the GDPR. The right of access is necessary to enable data subjects to exercise their other rights under the GDPR. A data controller must enable the data subject to exercise their right of access more easily. In this case, there is no indication of this, as Clearview has a policy of not responding to access requests. When a data controller fails to comply with these obligations, it affects the right that data subjects have to respect for their private life and the protection of their personal data.

****Severity of the violations****

201

Regarding the severity of violations 1 and 2 (unlawful processing of – special – personal data), the AP first notes that the unlawful processing constitutes the core of Clearview's business activity. Clearview does not process data incidentally, but systematically and on a large scale.

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various types of personal data for facial recognition purposes. Clearview makes use of personal data from a large number of sources that are combined and analyzed in a database. This database is also continuously enriched with new personal data. It provides users with the ability to search for data about individuals, obtain a detailed picture of the lives of these persons, and track their behavior. These processes are very intrusive for the individuals involved and may even have negative consequences for them. Clearview carries out these processes without the consent of the individuals and without having a legitimate interest. The unlawful processes also concern a very large number of individuals in the Netherlands, including minors, who deserve special protection with respect to a data controller. The AP also takes into account the invisible nature of the processing. Individuals are usually not aware of the processing and cannot reasonably expect that their personal data is being processed in this manner. Individuals can only become aware of this by chance when they encounter the name Clearview, for example, in media reports or on Clearview's website (which describes the processing

only in general terms).

202

For the justification of the severity of violations 3, 4, and 5 (violation of the transparency obligation and violations of – the facilitation obligation of – the right of access), the AP notes – in addition to what has been considered in the previous paragraph – that because Clearview processes (biometric) personal data in a manner that is very intrusive for the individuals involved as part of its business activity, it is of great importance that Clearview is also transparent about the processing of personal data, that individuals have the right to access the personal data that Clearview has collected about them, and that they can easily exercise that right. The fact that Clearview has effectively made it impossible for individuals to exercise their right of access and does not provide individuals with all the information mentioned in Article 14 of the GDPR is considered serious by the AP. However, the AP notes that Clearview has included some information in its privacy statement(s).

Duration of the violations

203

Regarding the duration of violations 1 and 2 (unlawful processing of – special – personal data), the AP has determined that the unlawful processing (in violation of Articles 6 and 9 of the GDPR) has been occurring at least since January 13, 2019, and is still ongoing. The same applies to violation 3 (violation of the transparency obligation). This concerns a significant period. The fact that Clearview has not yet ceased violations 1, 2, and 3 is considered serious by the AP.

204

The AP has also concluded that Clearview has not facilitated individuals in exercising their right of access (violation 5) at least since October 6, 2022, and that this violation is still ongoing. The latter violation started at a later date than violation 3 (violation of the transparency obligation), but has led to a further decrease in individuals' control over the processing of their personal data. The fact that Clearview has not yet ceased violation 5 (not facilitating individuals in exercising their right of access) is also considered serious by the AP.

Degree of culpability of the violations

205

Regarding the intentional or negligent nature of the infringements, the AP takes note of the circumstance that Clearview has deliberately sought to place itself outside the GDPR legal framework, while Clearview knows that it is intentionally collecting and storing photos of Dutch citizens through scraping from public sources, after which it creates a vector based on the person or persons depicted in the photos. As a result, individuals can be identified and monitored. This, combined with the fact that multiple supervisory authorities in the Union have identified violations of the GDPR concerning Clearview, indicates that Clearview was not only aware that its actions were incompatible with the GDPR but has also deliberately continued those actions even after sanctions were imposed on it by those other supervisory authorities in the Union. Most of those sanctions were imposed before the AP began its investigation into Clearview. Under these circumstances, the AP believes that negligence cannot be claimed, but rather intent is present.

Categories of personal data to which the violations relate

206

Finally, the AP considers that Clearview processes special (biometric) personal data within the meaning of Article 9 of the GDPR, which constitutes an aggravating circumstance.

Conclusion on the severity of the violations

207

In light of the aforementioned circumstances, the AP concludes that violations 1 through 5 constitute serious violations - in the category of "violations of high severity," as referred to in the Guidelines for calculating administrative fines.

Ad iii) Turnover of the company

208

Article 83, paragraph 5, of the GDPR states that for violations 1 through 5, Clearview may be subject to an administrative fine of up to €20 million.

209

As noted in paragraph 64 of the Guidelines for calculating administrative fines, it is fair to reflect the size of the company in determining the starting amounts and to take into account the turnover of the company.

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The AP points out, however, that Clearview has, despite repeated requests from the AP, failed to provide any information regarding its revenue. By doing so, Clearview deliberately deprives the AP of the opportunity to take Clearview's revenue into account when determining the fine. Therefore, the AP is compelled to assume the maximum fine of €20 million.

Conclusion starting amounts violations

211

As previously stated, this case involves serious violations, categorized as "high severity infringements." According to the Guidelines for calculating administrative fines, when calculating the administrative monetary fine for such infringements, the supervisory authority establishes the starting amount for further calculation at a point between 20% and 100% of the maximum fine, which in this case is €20 million. This corresponds to a starting amount between €4 million and €20 million. The general rule, according to the Guidelines for calculating administrative fines, is that the more serious the infringement within its own category, the higher the starting amount will be.

212

In light of the above, the AP is of the opinion that regarding violations 1 and 2 (unlawful processing of - special - personal data), the starting amount for calculating the fine must be significantly high.

213

Regarding violations 3, 4, and 5 (breach of transparency obligation and breach of - the facilitation obligation of - the right of access), it has been concluded that these also constitute serious violations. In the opinion of the AP, the starting amounts for these violations must therefore also be high. However, the AP takes into account for violation 3 (breach of transparency obligation) that Clearview has included some information in its privacy statement(s).

4.3 Assessment of mitigating or aggravating circumstances for the violations

214

According to the Guidelines for calculating administrative fines, it must then be considered whether there are circumstances in the case that warrant setting the fine higher or lower than the previously determined starting amount. The circumstances to be considered are listed in Article 83, second paragraph, introductory phrase and under a to k, of the GDPR. The circumstances mentioned in that provision must each be considered only once. In the previous step – to the extent applicable – account has already been taken of the nature, severity, and duration of the violations (part a), the intentional or negligent nature of the infringements (part b), and the categories of personal data (part g). This leaves parts c to f and h to k.

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215

One applicable circumstance is the extent to which there has been cooperation with the supervisory authority to remedy the infringement and mitigate its possible negative consequences (part f).

216

In this regard, the AP considers as an aggravating circumstance that Clearview, despite the aforementioned interventions from multiple supervisory authorities (both within and outside the EU), has taken no measures to bring its activities into compliance with the GDPR, has asserted that it is not subject to the GDPR, and has refused to answer questions from the AP. The AP assigns this aggravating circumstance equally to (i) violation 1, (ii) violation 2, (iii) violation 3, and (iv) violations 4 and 5.

217

Of the other circumstances mentioned in Article 83, second paragraph, introductory phrase and under c and e and g to k, of the GDPR, there is no evidence or they do not give rise to an increase or decrease of the fine.

4.4 Assessment of the maximum fine (Article 83, third paragraph, of the GDPR) and whether the fines are effective, proportionate, and dissuasive

218

The AP has previously determined in paragraph 4.2.1 that violations 1, 2, and 3 (unlawful processing of - special - personal data and breach of transparency obligation) should be regarded as infringements relating to the same or related processing activities as referred to in Article 83, third paragraph, of the GDPR.

219

In light of Article 83, third paragraph, of the GDPR and the fact that infringements are subject to fines under Article 83, fifth paragraph, of the GDPR, the AP sets the fine for those violations at €20,000,000.

220

As previously outlined in paragraph 193, violations 4 and 5 (failure to respond to two access requests and failure to facilitate data subjects in exercising their right of access) constitute separate infringing conduct, so these violations do not fall under Article 83, third paragraph, of the GDPR. In light of this, the AP sets the fine amount for those violations at €10,500,000.

Fines effective, proportionate, and dissuasive

221

Finally, the AP assesses whether the fines are effective, proportionate, and dissuasive and whether the legal maximum fine is exceeded. Also based on Articles 3:4 and 5:46, second paragraph, of the General Administrative Law Act

48 Article 83, third paragraph, of the GDPR states: "If a controller or processor intentionally or negligently infringes multiple provisions of this regulation with respect to the same or related processing activities, the total fine shall not exceed that for the most serious infringement."

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The administrative fine, given the circumstances of the specific case, must not lead to a disproportionate outcome. This is also laid down in Article 49 of the Charter.

222

Pursuant to Article 83, paragraph 5, introductory phrase and under a and b, of the GDPR, the AP can impose an administrative fine for the violations described above. As outlined in the Guidelines for

calculating administrative fines, the imposition of a fine can be considered effective if it achieves the purpose for which it was imposed. That purpose may lie in, on the one hand, punishing unlawful conduct and, on the other hand, promoting compliance with applicable regulations. Given the nature, severity, and duration of the infringements, as well as the other factors from Article 83, paragraph 2, GDPR as assessed above, the AP is of the opinion that imposing administrative fines under these circumstances achieves both goals and is therefore effective and deterrent. The amount of the administrative fines is also deemed effective and deterrent by the AP, particularly considering the fact that Clearview has completely refused to provide insight into the revenue it has generated.

****5. Orders subject to penalty****

223

The AP establishes that Clearview has not yet ceased the unlawful processing. Additionally, Clearview does not yet comply with the transparency requirements arising from Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR. Clearview also still fails to facilitate data subjects in exercising their rights of access and has not yet designated a representative in the Union.

224

Clearview must cease these violations as soon as possible. Therefore, the AP imposes four orders subject to penalty. The AP does this based on Article 58, paragraph 2, introductory phrase and under d, of the GDPR and Article 16, paragraph 1, of the UAVG read in conjunction with Article 5:32, paragraph 1, of the Awb.

225

The AP orders Clearview for the processing of personal data in the context of the service 'Clearview for law enforcement and public defenders':

I.

to cease the violation of Article 5, paragraph 1, introductory phrase and under a, read in conjunction with Article 6, paragraph 1, of the GDPR (violation 1, unlawful processing of personal data) as well as the violation of Article 9, paragraph 1, of the GDPR (violation 2, unlawful processing of special categories of personal data) and to keep this ceased. Clearview can do this by demonstrably ceasing the processing of personal data of data subjects located on Dutch territory and deleting the personal data unlawfully obtained by Clearview.

II.

to cease the violation of Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR as well as Article 5, paragraph 1, introductory phrase and under a, of the GDPR (violation 3, violation of transparency obligations) and to keep this ceased. This can

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Clearview shall demonstrably actively and fully provide the information referred to in Article 14 of the GDPR in a concise, transparent, understandable, and easily accessible manner to data subjects located on Dutch territory.

III.

To terminate and maintain the termination of the violation of Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR (violation 5, not facilitating data subjects in exercising their right of access). Clearview can do this by demonstrably ceasing its policy of not responding to access requests from data subjects located on Dutch territory.

IV.

To terminate and maintain the termination of the violation of Article 27, paragraph 1, of the GDPR (violation 6, no representative designated in the Union). Clearview can do this by demonstrably designating a representative in the Union in writing as referred to in Article 4, introductory part and

under 17, of the GDPR.

226

The AP refers to the Transparency Guidelines for order II. These provide examples of how a data controller can provide information in a concise, transparent, understandable, and easily accessible manner.

227

The AP attaches the following grace periods and fines to the aforementioned orders. In determining the grace periods, the AP has taken into account the estimated time that Clearview will need to comply with the orders. Regarding the amount of the fine, Article 5:32b, paragraph 3, of the General Administrative Law Act (Awb) stipulates that fine amounts must be reasonably proportionate to the severity of the violated interest and to the intended effect of the fine. In this regard, it is important that a fine must provide such an incentive that the order is complied with.⁴⁹ If an offender gains an advantage from a violation, this may be relevant and can be taken into account when determining the amount of the fine.⁵⁰

Order I: grace period and amount of the fine

228

The AP attaches a grace period of three months to Order I (the termination of the violations regarding the lawfulness of processing and the violation of the processing prohibition for special personal data). If Clearview decides to terminate the processing of personal data of data subjects located on Dutch territory in the context of the service 'Clearview for law enforcement and public defenders,' this can happen in the short term. The AP considers a grace period of three months to be sufficient for this.

⁴⁹ See for example the ruling of the Administrative Jurisdiction Division of the Council of State of July 17, 2013, ECLI:NL:RVS:2013:343, para. 9.1, and the ruling of the Administrative Jurisdiction Division of the Council of State of April 19, 2017, ECLI:NL:RVS:2017:1100, para. 4.2.

⁵⁰ See for example the ruling of the Administrative Jurisdiction Division of the Council of State of February 6, 2019 (ECLI:NL:RVS:2019:321), para. 4.2.

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If Clearview does not terminate the identified violation within three months, it will incur a penalty for each month (or part thereof) that it has not fully complied with the order after the expiration of that grace period. The AP sets the amount of this penalty for each month after the grace period at €250,000 (say: two hundred fifty thousand euros), up to a maximum total amount of €1,500,000 (say: one million five hundred thousand euros). In determining the amount of the penalty, the AP has taken into account that this is a large-scale and prolonged violation of the principle of the GDPR that personal data may only be processed if there is a lawful basis, and that Clearview is also unlawfully processing a special category of personal data (biometric data). The amount of the penalty is also based on the fact that Clearview gains financial advantage from the processing that violates the GDPR.

Order II: grace period and amount of penalty

230

The AP attaches a grace period of three months to Order II (the termination of the violation concerning the transparency obligation). Clearview will need time to inform data subjects located in the Netherlands in accordance with Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2 of the GDPR. Clearview can take online measures to provide data subjects with all information in a concise, transparent, understandable, and easily accessible manner. It is within Clearview's power to take these measures. In light of the above, the AP considers a grace period of three months to be sufficient.

If Clearview does not terminate the identified violation within three months, it will incur a penalty for each month (or part thereof) that it has not fully complied with the order after the expiration of that grace period. The AP sets the amount of this penalty for each month after the grace period at €250,000 (say: two hundred fifty thousand euros), up to a maximum total amount of €1,500,000 (say: one million five hundred thousand euros). In determining the amount of the penalty, the AP has taken into account the extent of the violation and the fact that a provision that is part of one of the principles of the GDPR, namely the transparency principle, has been violated. It is important that data subjects are informed as quickly as possible in a complete and clear manner about the processing of their personal data.

Order III: grace period and amount of penalty

The AP attaches a grace period of one month to Order III (the termination of the violation concerning the handling of access requests). If Clearview decides to cease its policy of not responding to access requests from data subjects, this can happen in the short term. The AP considers a grace period of one month to be sufficient for this.

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If Clearview does not terminate the identified violation within one month, it will incur a penalty for each month (or part thereof) that it has not fully complied with the order after the expiration of that grace period. The AP sets the amount of this penalty for each month after the expiration of the grace period at €250,000 (say: two hundred fifty thousand euros), up to a maximum total amount of €1,500,000 (say: one million five hundred thousand euros). In determining the amount of the penalty, the AP has taken into account the extent of the violation and the interest of the parties involved in being able to exercise their right of access as quickly and easily as possible, as the exercise of that right of access is necessary to enable the parties involved to exercise their other rights under the GDPR.

****Order IV: Grace period and amount of penalty****

****234****

The AP attaches a grace period of three months to Order IV (the termination of the violation of not having designated a representative in the Union). This period provides Clearview, in the opinion of the AP, with sufficient opportunity to rectify the violation.

****235****

If Clearview does not terminate the identified violation within three months, it will incur a penalty for each month (or part thereof) that it has not fully complied with the order after the expiration of that grace period. The AP sets the amount of this penalty for each month after the expiration of the grace period at €200,000 (say: two hundred thousand euros), up to a maximum total amount of €600,000 (say: six hundred thousand euros). In determining the amount of the penalty, the AP has taken into account the large-scale processing of (a special category of) personal data and the importance of having a representative act on behalf of a data controller who can be approached by any supervisory authority.

****Preventing the incurrance of penalties****

****236****

If Clearview wishes to prevent the incurrance of penalties, it must timely submit documents to the AP demonstrating that it is complying with the orders.

****Final considerations****

From all the above in this decision, the AP first concludes that Clearview AI Inc. has no legal basis for

processing personal data of individuals located on Dutch territory for the service 'Clearview for law enforcement and public defenders.' As a result, Clearview AI Inc. violates Article 5, paragraph 1, introductory phrase and under a, read in conjunction with Article 6, paragraph 1, of the GDPR. The AP also finds that Clearview AI Inc. unlawfully processes a special category of personal data, namely biometric data, of individuals located on Dutch territory for that service. As a result, Clearview AI Inc. violates Article 9, paragraph 1, of the GDPR.

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The AP also concludes that Clearview AI Inc. fails to take appropriate measures to ensure that individuals located on Dutch territory receive all the information referred to in Article 14 of the GDPR. As a result, Clearview AI Inc. acts in violation of Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR, and in violation of Article 5, paragraph 1, introductory phrase and under a, of the GDPR.

The AP also finds that Clearview AI Inc. has wrongly failed to respond to two access requests from individuals and that Clearview AI Inc. has wrongly failed to facilitate individuals located on Dutch territory in exercising their right of access by not responding to access requests. This constitutes a violation of Article 12, paragraph 3, read in conjunction with Article 15 of the GDPR and Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR.

The AP concludes that the identified violations of the rights and freedoms of individuals are serious and therefore proceeds to enforcement against Clearview AI Inc. The AP imposes the following measures:

****6. Decision****

****Fines****

****I.****

The AP imposes an administrative fine of €20,000,000.00 (say: twenty million euros) on Clearview AI Inc. for violating

- Article 5, paragraph 1, introductory phrase and under a, read in conjunction with Article 6, paragraph 1, of the GDPR,
- Article 9, paragraph 1, of the GDPR, and
- Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR, as well as Article 5, paragraph 1, introductory phrase and under a, of the GDPR.

****II.**** The AP imposes an administrative fine of €10,500,000.00 (say: ten million five hundred thousand euros) on Clearview AI Inc. for violating Article 12, paragraphs 2 and 3, read in conjunction with Article 15 of the GDPR.⁵¹

51 The AP will refer the claims to the Central Judicial Collection Agency (CJIB). The AP will only proceed to collect the fines after any legal (subsequent) proceedings regarding this decision have been concluded.

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Sanctions under penalty

The AP orders Clearview AI Inc. to cease the processing of personal data in the context of the service 'Clearview for law-enforcement and public defenders':

I.
to terminate the violation of Article 5, paragraph 1, introductory part and under a, read in conjunction

with Article 6, paragraph 1, of the GDPR as well as the violation of Article 9, paragraph 1, of the GDPR and to keep this terminated. Clearview AI Inc. can do this by demonstrably ceasing the processing of personal data of data subjects located on Dutch territory and removing the unlawfully obtained personal data by Clearview AI Inc.

Clearview AI Inc. will incur a penalty of €250,000.00 (two hundred fifty thousand euros) after the expiration of the grace period of three months following the announcement of this decision for each month (or part thereof) that it has not fully complied with the order, up to a maximum of €1,500,000.00 (one million five hundred thousand euros).

II.
to terminate the violation of Article 12, paragraph 1, read in conjunction with Article 14, paragraphs 1 and 2, of the GDPR as well as Article 5, paragraph 1, introductory part and under a, of the GDPR and to keep this terminated. Clearview AI Inc. can do this by still demonstrably actively and fully providing the information referred to in Article 14 of the GDPR to data subjects located on Dutch territory in a concise, transparent, understandable, and easily accessible form.

Clearview AI Inc. will incur a penalty of €250,000.00 (two hundred fifty thousand euros) after the expiration of the grace period of three months following the announcement of this decision for each month (or part thereof) that it has not fully complied with the order, up to a maximum of €1,500,000.00 (one million five hundred thousand euros).

III.
to terminate the violation of Article 12, paragraph 2, read in conjunction with Article 15 of the GDPR and to keep this terminated. Clearview can do this by demonstrably ceasing its policy of not responding to access requests from data subjects located on Dutch territory.

Clearview AI Inc. will incur a penalty of €250,000.00 (two hundred fifty thousand euros) after the expiration of the grace period of one month following the announcement of this decision for each month (or part thereof) that it has not fully complied with the order, up to a maximum of €1,500,000.00 (one million five hundred thousand euros).

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IV.
to terminate the violation of Article 27, paragraph 1, of the GDPR and to keep this terminated. Clearview can do this by demonstrably designating a representative in the Union in writing as referred to in Article 4, introductory part and under 17, of the GDPR.

Clearview AI Inc. will incur a penalty of €200,000.00 (two hundred thousand euros) after the expiration of the grace period of three months following the announcement of this decision for each month (or part thereof) that it has not fully complied with the order, up to a maximum of €600,000.00 (six hundred thousand euros).

Yours sincerely,
Authority Personal Data,

mr. A. Wolfsen
Chairman

Remedies clause

If you disagree with this decision, you can submit a notice of objection digitally or on paper to the Authority Personal Data within six weeks of the date of dispatch of the decision. Pursuant to Article 38 of the UAVG, the submission of a notice of objection suspends the effect of the order imposing the administrative fine. For submitting a digital objection, see www.autoriteitpersoonsgegevens.nl, under

the heading Contact, item “Objection or complaint about the AP.”

The address for submitting on paper is:

Authority Personal Data

P.O. Box 93374

2509 AJ The Hague.

Indicate on the envelope ‘Awb-objection’ and put ‘notice of objection’ in the title of your letter.

In your notice of objection, include at least:

- your name and address;
- the date of your notice of objection;
- the reference mentioned in this letter (case number), or attach a copy of this decision;
- the reason(s) why you disagree with this decision;
- your signature.

The direct URL is .